RNI No. MAHENG /2009/35528

सत्यमेव जयते

महाराष्ट्र शासन राजपत्र

असाधारण भाग आठ

वर्ष ११, अंक ३२] शुक्रवार, जुलै १८, २०२५/आषाढ २७, शके १९४७ [पृष्ठे ७, किंमत : रुपये २७.००

असाधारण क्रमांक ७२

प्राधिकृत प्रकाशन

महाराष्ट्र विधानमंडळाचे अधिनियम व राज्यपालांनी प्रख्यापित केलेले अध्यादेश व केलेले विनियम आणि विधि व न्याय विभागाकडून आलेली विधेयके (इंग्रजी अनुवाद).

In pursuance of clause (*3*) of article 348 of the Constitution of India, the following translation in English of the Maharashtra Gadchiroli District Mining Authority Act, 2025 (Mah. Act No. XXXVIII of 2025), is hereby published under the authority of the Governor.

By order and in the name of the Governor of Maharashtra,

SATISH WAGHOLE,
Secretary (Legislation) to Government,
Law and Judiciary Department.

MAHARASHTRA ACT No. XXXVIII OF 2025.

(First published, after having received the assent of the Governor in the "Maharashtra Government Gazette", on the 18th July 2025).

An Act to provide for establishment of the Gadchiroli District Mining Authority for the purposes of co-ordinating and supervising orderly and rapid development of the mineral bearing areas in the Gadchiroli District and executing plans, projects and schemes for such development and for matters connected therewith or incidental thereto.

WHEREAS both Houses of the State Legislature were not in session;

AND WHEREAS the Governor of Maharashtra was satisfied that circumstances existed which rendered it necessary for him to take immediate action to provide for establishment of the Gadchiroli District Mining Authority for the purposes of co-ordinating and supervising orderly and rapid development

of the mineral bearing areas in the Gadchiroli District and executing plans, projects and schemes for such development and for matters connected therewith or incidental thereto, for the purposes hereinafter appearing; and, therefore, promulgated the Gadchiroli District Mining Authority Ordinance, 2025, on the 2nd June 2025; Mah. Ord. IV of 2025.

AND WHEREAS it is expedient to replace the said Ordinance by an Act of the State Legislature; it is hereby enacted in the Seventy-sixth Year of the Republic of India as follows :—

Short title, commencement, extent and application.

1. (*1*) This Act may be called the Gadchiroli District Mining Authority Act, 2025.

(*2*) It shall be deemed to have come into force on the 2nd June 2025.

(3) It shall extend to the area of the Gadchiroli District.

(*4*) It shall apply to major minerals and specified minor minerals.

Definitions.

2. (*1*) In this Act, unless the context otherwise requires,–

(*a*) "Authority" means the Authority established under sub-section (*1*) of section 3 of the Act;

(*b*) "Corporation" means the Maharashtra State Mining Corporation Limited;

(*c*) "Directorate" means the Directorate of Geology and Mining under the Industries, Energy, Labour and Mining Department of the Government of Maharashtra;

(*d*) "Executive Committee" means the Executive Committee constituted under section 9 of the Act;

(*e*) "Government" or "State Government" means the Government of Maharashtra;

(*f*) "Mines and Minerals Act" means the Mines and Minerals (Development and Regulation) Act, 1957; 67 of 1957.

(*g*) "minerals" includes all minerals except mineral oils;

(*h*) "mineral bearing block" means the area prepared for mining lease or composite license under the provisions of the Minerals (Evidence of Mineral Contents) Rules, 2015, for the development of mineral concession like mining lease, composite license and exploration license;

(*i*) "mineral bearing area development" with its grammatical variations, means the development within mineral bearing areas for mining lease, composite license, mineral exploration, allied mining activity and other similar activities;

(*j*) "prescribed" means prescribed by rules made under the Act;

(*k*) "regulations" means the regulations made by the Authority under the Act;

(*l*) "specified minor minerals" means limestone, lime shell, bentonite, fuller's earth or such other minerals as may be specified by the Central Government in the *Official Gazette*, from time to time, and the threshold value of which is less than the threshold value notified by the Indian Bureau of Mines.

(*2*) Words and expressions used in this Act but not defined herein shall have the same meanings as are respectively assigned to them in the Mines and Minerals Act and the rules made thereunder by the Government of India and the Government of Maharashtra.

Establishment of Authority.

3. As soon as may be, after the commencement of this Act, the State Government may, by notification in the *Official Gazette*, establish an Authority to be called the Gadchiroli District Mining Authority to exercise the powers conferred on it and perform the functions assigned to it under the Act.

Composition of Authority.

4. (*1*) The Authority shall consist of the following members, namely :–

(i)	The Chief Minister	Chairperson;
(ii)	One Minister to be nominated by the Chief Minister	Co-Chairperson;
(iii)	One Minister to be nominated by the Chief Minister	Deputy Chairperson;
(iv)	Two Ministers to be nominated by the Chief Minister	*Ex-officio* Members;
(v)	Chief Secretary, Government of Maharashtra	*Ex-officio* Member;
(vi)	Secretary (Mining), Industries, Energy, Labour and Mining Department	*Ex-officio* Member;
(vii)	Secretary (Industries), Industries, Energy, Labour and Mining Department	Ex-officio Member;
(viii)	Secretary (Labour), Industries, Energy, Labour and Mining Department	*Ex-officio* Member;
(ix)	Secretary (Energy), Industries, Energy, Labour and Mining Department	*Ex-officio* Member;
(x)	Secretary, Finance Department	*Ex-officio* Member;
(xi)	Secretary, Environment and Climate Change Department	*Ex-officio* Member;
(xii)	Secretary (Revenue), Revenue and Forests Department	*Ex-officio* Member;
(xiii)	Secretary (Forests), Revenue and Forests Department	*Ex-officio* Member;
(xiv)	Director General, Directorate of Geology and Mining	*Ex-officio* Member;
(xv)	Collector, Gadchiroli District	*Ex-officio* Member;
(xvi)	Managing Director, Maharashtra State Mining Corporation Limited.	Member- Secretary.

(*2*) The Authority may invite any officer of the Government or local authority to attend its meeting or meetings as a special invitee for the purpose of assisting or advising it on any matter or matters. The officer so invited may take part in the proceedings of the Authority, but shall have no right to vote.

(*3*) A person shall cease to hold office as a member of the Authority, as soon as he ceases to hold the post, designation or office, as the case may be, by virtue of which he is so appointed and such person shall inform the Chairperson in writing of his having so ceased to be the member of the Authority, within a week therefrom.

(*4*) The Managing Director of the Corporation shall be the Chief Executive Officer of the Authority and shall exercise such powers and perform such duties as the Authority may direct.

Meeting of Authority.

5. *(1)* The Authority shall meet not less than thrice in every year, and a period of not more than four months shall intervene between two successive meetings and shall observe such rules of procedure in its meetings as it may determine.

(*2*) The meeting of the Authority shall be conducted at Nagpur or at such other place as the Chairperson may decide.

(*3*) The quorum of the meeting shall be minimum nine members including Chairperson.

Objectives of Authority.

6. The Authority shall have the following objectives, namely :—

(*a*) to expedite the process of development of major and specified minor minerals blocks in the Gadchiroli District;

(*b*) to co-ordinate between various mineral concession holders and mineral based industries;

(*c*) to facilitate the setting up of Ultra Mega Steel Plants and ensure supply of iron ore raw material to them;

(*d*) to develop the Gadchiroli District as steel hub;

(*e*) to take measures for facilitation and for setting up mineral based industries in the Gadchiroli District;

(*f*) to monitor the mining projects in the Gadchiroli District.

Acts or proceedings presumed to be good and valid.

7. No act or proceeding of the Authority or Executive Committee shall be invalid by reason only of a vacancy therein, or any defect in the appointment of any person acting as the Chairperson or Co-Chairperson or Deputy Chairperson or Member, if such act or proceeding is otherwise in accordance with the provisions of this Act.

Powers and functions of Authority.

8. The Authority shall exercise the following powers and perform the following functions, namely :—

(*a*) to streamline and accelerate the systematic development of major and specified minor minerals in the Gadchiroli District, in accordance with the Mines and Minerals Act and the rules made thereunder;

(*b*) to ensure compliance of provisions of the Mines and Minerals Act, Mineral Concession Rules, 1960, Mineral (Auction) Rules, 2015 and other rules framed by the Central Government or State Government;

(*c*) to speed up the process of operationalization of mines;

(*d*) to expedite the process of obtaining clearances for development of mineral blocks and setting up of mineral based industries in co-ordination with all the concerned departments and successful bidder;

(*e*) to review and monitor all important major mineral projects and specified minor mineral projects in the Gadchiroli District for speedy operationalization of those mines which would include auctioned blocks and blocks allotted to the Corporation;

(*f*) to formulate and review schemes for development of mining in the Gadchiroli District;

(*g*) to examine and recommend major mineral blocks and specified minor mineral blocks in the Gadchiroli District proposed for auction as per technical recommendation of the Directorate and to monitor periodically the operationalization of such successfully auctioned blocks in a time bound manner;

(*h*) to ensure adequate supply of iron ore to the Steel Plants in the Gadchiroli District, by development of iron ore blocks through Mine Developer-*cum*-Operator (MDO), after the iron ore area is reserved for the Corporation by the Central Government;

(*i*) to recommend to the State Government any matter or proposal requiring action by it or any other authority to whom such powers are delegated by the State Government for the overall development of the Mining Sector in the Gadchiroli District;

(*j*) to prepare and implement schemes for providing alternative accommodation and for rehabilitation of persons displaced by projects and schemes;

(*k*) any other powers and functions as may be prescribed.

Constitution of Executive Committee.

9. *(1)* There shall be an Executive Committee of the Authority consisting of the following members, namely :—

(i)	Chief Secretary, Government of Maharashtra	Chairperson;
(ii)	Secretary (Mining), Industries, Energy, Labour and Mining Department	*Ex-officio* Member;
(iii)	Secretary (Industries), Industries, Energy, Labour and Mining Department	*Ex-officio* Member;
(iv)	Secretary (Energy), Industries, Energy, Labour and Mining Department	*Ex-officio* Member;
(v)	Secretary (Revenue), Revenue and Forests Department	*Ex-officio* Member;
(vi)	Secretary (Forests), Revenue and Forests Department	*Ex-officio* Member;
(vii)	Secretary, Environment and Climate Change Department	*Ex-officio* Member;
(viii)	Secretary, Finance Department	*Ex-officio* Member;

(ix)	Director General, Directorate of Geology and Mining	*Ex-officio* Member;
(x)	Collector, Gadchiroli District	*Ex-officio* Member;
(xi)	Managing Director, Maharashtra State Mining Corporation Limited	Member-Secretary.

(*2*) The Executive Committee may invite any officer of the Government or local authority to attend its meeting or meetings as a special invitee for the purpose of assisting or advising it on any matter or matters. The officer so invited may take part in the proceedings of the committee but shall have no right to vote.

(*3*) The Executive Committee shall meet at such place and at such time as may be determined by its Chairperson, and shall observe such rules of procedure in its meetings as it may determine.

(*4*) The Executive Committee may, from time to time, direct that any power conferred on it or any functions assigned to it, by or under the provisions of this Ordinance, shall be exercised or performed by the Managing Director of the Corporation.

Powers and functions of Executive Committee.

10. Subject to the supervision of the Authority, the Executive Committee shall exercise the following powers and perform the following functions, namely:-

(*a*) to finalize the terms and conditions of the tender and approve the tenders to appoint Mine Developer-*cum*-Operator (MDO) for the operationalization of the mineral blocks reserved for the Corporation;

(*b*) any other powers and functions as may be assigned to it by the Authority.

Authentication of proceedings.

11. All proceedings of the Authority and the Executive Committee shall be authenticated by the signature of the Chairperson of the Authority or the Executive Committee, as the case may be, or of any member thereof authorized by the Chairperson of Authority or Executive Committee in this behalf, and all other orders and instruments of the Authority or the Executive Committee shall be authenticated by the Member-Secretary of the Authority or the Executive Committee.

Compliance of Mines and Minerals Act and rules.

12. The Authority and the Executive Committee shall, while exercising the powers and performing the functions under this Act, comply with provisions of the Mines and Minerals Act and the rules made thereunder.

Powers of Authority to call for returns, reports, etc.

13. The Authority and the Executive Committee shall have power to call for any return, statement of accounts, reports, statistics or other information from the Government Offices or other related authorities, which is required by it in exercise of its powers and performance of its functions under this Act, or any other law for the time being in force and such offices or authorities shall be bound to furnish such information.

Powers to delegate.

14. The Authority may, delegate any power exercisable by it or any function to be performed by it, by or under this Act to the Executive Committee or the Managing Director of the Corporation subject to such terms and conditions as it may specify.

Protection of action taken in good faith.

15. No suit, prosecution or other legal proceeding shall lie against any member of the Authority or the Executive Committee constituted under this Act for anything done or any action taken in good faith under this Act.

Expenditure of Authority.

16. The expenditure of the Authority and the Executive Committee shall be borne by the Corporation and the Directorate.

Power to make rules.

17. (*1*) The State Government may, by notification in the *Official Gazette,* make rules to carry out the purposes of this Act.

(*2*) Every rule made under this Act shall be laid, as soon as may be, after it is made, before each House of the State Legislature, while it is in session for a total period of thirty days, which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session in which it is so laid or the session immediately following, both Houses agree in making any modification in rule or both Houses agree that the rule should not be made, and notify their decision to that effect in the *Official Gazette,* the rule shall from the date of publication of such decision in the *Official Gazette,* have effect only in such modified form or be of no effect, as the case may be; so however, that any such modification or annulment shall be without prejudice to the validity of anything previously done or omitted to be done under that rule.

Power to make regulations.

18. The Authority may, with the prior approval of the Government, from time to time, make regulations, not inconsistent with provisions of this Act and the rules made thereunder, for all or any of the matters to be provided under this Act and generally for all other matters for which provision is, in the opinion of the Authority, necessary for the exercise of its powers and discharge of its functions under this Act.

Power to remove difficulties.

19. *(1)* If any difficulty arises in giving effect to the provisions of this Act, the Government may, as occasion arises, by order, published in the *Official Gazette,* do anything not inconsistent with the provisions of this Act, which appears to it to be necessary or expedient for the purpose of removing the difficulty :

Provided that, no such order shall be made after expiry of period of two year from the date of commencement of this Act.

(2) Every order made under sub-section (*1*) shall be laid, as soon as may be, after it is made, before each House of the State Legislature.

Mah. Ord. IV of 2025.

Repeal of Mah. Ord. IV of 2025 and saving.

20. *(1)* The Gadchiroli District Mining Authority Ordinance, 2025, is hereby repealed.

(*2*) Notwithstanding such repeal, anything done or any action taken (including any notification or order issued) under the corresponding provisions of the said Ordinance, shall be deemed to have been done, taken or issued, as the case may be, under the corresponding provisions of this Act.

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